

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William MacLure	Team: Squad #16	CCRB Case #: 201602435	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 03/23/2016 10:15 AM	Location of Incident: Rockaway Avenue between East 98th Street and Avenue D	18 Mo. SOL 9/23/2017	Precinct: 69
Date/Time CV Reported Wed, 03/23/2016 10:56 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/23/2016 10:56 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Patricia Morris	11817	942239	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Patricia Morris	Discourtesy: Police Officer Patricia Morris spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB over the phone on March 23, 2016.

On March 23, 2016, at approximately 10:15 a.m., § 87(2)(b) was in the 69th Precinct stationhouse in Brooklyn § 87(2)(b). § 87(2)(b) left the stationhouse and sat in his car outside the stationhouse. PO Patricia Morris pulled over § 87(2)(b) at a location the investigation determined to be Rockaway Avenue between East 98th Street and Avenue D in Brooklyn. PO Morris asked for § 87(2)(b)'s license and registration. § 87(2)(b) gave PO Morris his license and insurance card. When PO Morris requested his registration again, § 87(2)(b) told her that she had to tell him why she was stopping him. PO Morris said, "Give me your fucking registration" (**Allegation A**). § 87(2)(b) called 911 and requested that a sergeant respond. Sgt. Eugenio Garcia of the 69th Precinct responded. § 87(2)(b) was issued two summonses as a result of this incident for § 87(2)(b) (Board Review 01).

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation because § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b) was issued two summonses, § 87(2)(b) as a result of this incident (Board Review 01). A FOIL request at the New York State Department of Motor Vehicles is pending and will be added to the case file upon receipt.

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s second complaint filed at the CCRB. (Board Review 02)
- This is the eighth CCRB complaint filed against PO Morris. PO Morris has eight previous allegations over five complaints. PO Morris has no substantiated allegations. (Board Review 03)

Findings and Recommendations

Allegation A – Discourtesy: PO Patricia Morris spoke discourteously to § 87(2)(b)

It is undisputed that PO Morris issued § 87(2)(b) two summonses.

On March 29, 2016, § 87(2)(b) was interviewed at Councilman Robert Cornegy's office (Board Review 04). On March 23, 2016, § 87(2)(b) § 87(2)(b) inside the 69th Precinct stationhouse, located at 9720 Foster Avenue in Brooklyn. At approximately 10:15 a.m., § 87(2)(b) was sitting in his car on Foster Avenue outside the stationhouse. PO Morris pulled up behind him and activated her siren. § 87(2)(b) did not know what PO Morris wanted him to do. § 87(2)(b) turned left onto East 98th Street and stopped. PO Morris also turned onto East 98th Street and stopped. PO Morris exited her car and walked over to § 87(2)(b)'s vehicle. § 87(2)(b) rolled down his window. PO Morris asked for his license

and registration. § 87(2)(b) asked PO Morris why she needed his license and registration. PO Morris told him that she would tell him after he gave them to her. § 87(2)(b) gave PO Morris his license and insurance card. PO Morris went back to her vehicle. PO Morris came back to § 87(2)(b)'s vehicle and told him that she asked for his registration, not his insurance card. § 87(2)(b) told PO Morris that she had to tell him why she was stopping him. PO Morris yelled at § 87(2)(b) "Give me your fucking registration." § 87(2)(b) rolled up his window and called 911. § 87(2)(b) requested a supervisor to the scene. Sgt. Garcia came out and spoke to PO Morris. PO Morris gave Sgt. Garcia the summonses and § 87(2)(b)'s license. Sgt. Garcia gave § 87(2)(b) his license and the summonses.

PO Morris was interviewed at the CCRB on May 9, 2015 (Board Review 05). PO Morris stated that on March 23, 2016, she was parked in her unmarked RMP on East 98th Street at Foster Avenue in Brooklyn, next to the 69th Precinct stationhouse. PO Morris was working an assignment of Traffic and Pedestrian Safety and was responsible for giving summonses to traffic law violators. At approximately 10:15 a.m., PO Morris observed § 87(2)(b) driving eastbound on Foster Avenue and noticed that he was not wearing a seatbelt. § 87(2)(b) turned left onto East 98th Street from Foster Avenue without signaling. PO Morris followed him on East 98th Street. § 87(2)(b) then turned right onto Rockaway Parkway, again without signaling. Once on Rockaway Parkway, PO Morris pulled § 87(2)(b) over. PO Morris walked to § 87(2)(b)'s driver's side window and asked for his license, registration, and insurance. § 87(2)(b) asked why she was pulling him over. PO Morris told him that it was because she observed him driving without his seatbelt on and turning twice without using his signal. § 87(2)(b) told PO Morris that he just came from the 69th Precinct stationhouse. § 87(2)(b) gave PO Morris his license and registration. PO Morris went back to her vehicle to write the summons. When she got to her vehicle she noticed that § 87(2)(b)'s registration was expired. PO Morris walked back to § 87(2)(b)'s vehicle and noticed that the decal on his license plate was also expired. When she got to his window, PO Morris saw that § 87(2)(b) was on the phone. PO Morris asked § 87(2)(b) if he had a valid registration. § 87(2)(b) told PO Morris to give him the summons for expired registration. PO Morris went back to her vehicle and heard on the radio that a sergeant was requested to her location. Sgt. Garcia arrived and spoke to PO Morris then § 87(2)(b). PO Morris asked Sgt. Garcia if everything was finished. PO Morris gave § 87(2)(b) two summonses, one for expired registration and one for driving without a seatbelt (Board Review 1). PO Morris stated that she did not use discourteous language during her interaction with § 87(2)(b) and she did not say, "Give me your fucking registration."

In § 87(2)(b)'s call to 911 (Board Review 06 and 07), PO Morris cannot be heard. § 87(2)(b) stated to the 911 operator that PO Morris was irate and requested another officer to come to the scene and deescalate the situation. During his testimony (Board Review 04), § 87(2)(b) was not sure whether or not he was on the phone with 911 when PO Morris cursed at him.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Signature

Print

Date

Title/Signature

Print

Date

Title/Signature	Print	Date
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